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SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN DIEGO UNLIMITED CIVIL

MIRAY ATAMIAN, Individually and On Behalf of All Others Similarly Situated,

Plaintiffs,

v.

OLAPLEX, INC.; and OLAPLEX HOLDINGS, INC.,

Defendants.

Case No.: 37-2024-00018492-CU-BT-CTL

NOTICE OF MOTION AND PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS AND SERVICE AWARD

CLASS ACTION

Assigned for all purposes to Judge Marcella O. McLaughlin, Dept. C-72

[Filed concurrently with Declarations of Abbas Kazerounian, Jason A. Ibey, Gil Melili, Pamela Prescott, Miray Atamian and Christopher Leung]

Date: July 11, 2025
Time: 9:30 a.m.
Dept.: C-72
Action filed: April 19, 2024

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Miray Atamian will and hereby does move for approval of a request for Attorneys' Fees, Costs, Claims Administrator Costs, and an Individual Service Award in this conditionally approved class action settlement with Defendants Olaplex, Inc., and Olaplex Holdings, Inc., pursuant to Sections 2.3 to 2.5 of the Settlement Agreement and Release (ROA #22, Exhibit 1 thereto), Cal. Civ. Code § 1780(e) and Cal. Civ. Proc. Code §

1021.5, on July 11, 2025, at 9:30 a.m., at the Superior Court of California, County of San Diego, in the Central Hall of Justice Courthouse located at 330 West Broadway, San Diego, CA 92101, in Department C-72. Specifically, Plaintiff seeks approval of an award of $1,052,199 in combined attorneys' fees and costs, a $5,000 service award to the named Plaintiff, and payment of $292,801 for class notice and settlement administration expenses to Simpluris, Inc., totaling $1,350,000.

This motion is based on this Notice, the Memorandum of Points and Authorities, the supporting Declarations and Exhibits thereto, the Class Action Complaint, the Second Amended Preliminary Approval Order (ROA #39), the complete files and records in this action, and any evidence that may be presented at the hearing.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Plaintiff Miray Atamian ("Plaintiff" or "Atamian") moves this Court for approval of her request for attorneys' fees, costs, administration expenses and a service award ("Motion") as part of the conditionally approved class settlement in this action against defendants Olaplex, Inc., and Olaplex Holdings, Inc. (jointly, "Olaplex" or "Defendants").

The requested attorneys' fees, costs, and service award are reasonable and justified considering the fair settlement obtained for the Class and other relevant factors for the Court's consideration. Pursuant to the Settlement Agreement ("Agreement" or "Agr.," ROA # 22, Exhibit 1 thereto), Plaintiff may request up to $1,350,000 in Claims Administrator Costs, attorneys' fees, litigation costs, and an Individual Service Award, combined, to be paid by Defendants, which is to be paid separately from the award to the approximately ten million Class members who are each entitled to a $5.00 Voucher towards the purchase of an Olaplex product. Agr. § 2.3. Specifically, Plaintiff requests $292,801 for class notice and settlement administration expenses, $1,052,199 as a combined award of attorneys' fees and litigation costs, and a $5,000 service award to Plaintiff.

II. BRIEF FACTUAL AND PROCEDURAL POSTURE

Plaintiff alleges that Defendants manufactured and sold premium haircare products throughout the United States and California that are misrepresented as having been "Made in U.S.A." despite being comprised of several foreign ingredients. Complaint ("Compl.") ¶¶ 1-2, 8. As a result, Plaintiff alleges that Defendants have violated (a) California's Made in USA Statute, Cal. Bus. & Prof. Code § 17533.7 ("MUSA"); (b) California's Unfair Competition Law, Cal. Bus. & Prof. Code §§ 17200, et seq. ("UCL"); (c) California's Consumer Legal Remedies Act, Cal. Civ. Code §§ 1750, et seq. ("CLRA"); and engaged in (d) negligent misrepresentation and (e) intentional misrepresentation. Id. at ¶ 8. Defendants deny all liability and assert that their contract manufacturers are located in the United States.

Prior to filing suit, Plaintiff served a demand for corrective action on Olaplex, dated January 4, 2023, and later engaged in private mediation before Robert A. Meyer of JAMS on June 28, 2023, and July 3, 2023. Declaration of Jason A. Ibey ("Ibey Decl."), ¶¶ 7-8; Declaration of Abbas Kazerounian ("Kazerounian Decl."), ¶ 8. Prior to mediation, the parties voluntarily exchanged information relating to Plaintiff's claims and estimated class size. Ibey Decl., ¶¶ 9-11. Through mediation a settlement in principle was reached relating to the settlement consideration, however, the parties continued to vigorously negotiate many other aspects of the settlement over a period of approximately eleven months, fully executing that Agreement on June 17, 2024. Ibey Decl., ¶ 10; Kazerounian Decl., ¶¶ 8-10. The settlement was not fully executed until after the Complaint was filed on April 19, 2024, prior to the expiration of a tolling agreement (Ibey Decl., ¶ 10). Defendants filed an Answer on April 30, 2024 (ROA #10), asserting twenty-one affirmative defenses.

On June 10, 2024, Plaintiff filed a notice of settlement (ROA #16). On September 6, 2024, the Court heard arguments in favor of Plaintiff's Unopposed Motion for Preliminary Approval of Class Action Settlement and Certification of Settlement Class ("Preliminary Approval Motion" or "Prelim. App. Mtn."), which was granted by order that same day (ROA #31).

Subsequently, the parties twice requested amendment to the conditional settlement approval order due to the need to extend various deadlines, including to afford non-party Amazon.com additional time to provide class notice to its online customers (ROA ## 35, 38).

On November 26, 2024, the Court issued a Second Amended Preliminary Approval Order (ROA #39), requiring Notice to commence by February 21, 2025; setting a deadline of April 22, 2025 for a motion for attorneys' fees and costs; setting a deadline for Class members to submit a claim, request exclusion or object by May 12, 2025; setting a deadline of June 6, 2025 to file a Final Approval Motion; and scheduling the Final Approval Hearing for July 11, 2025 at 9:30 am.

Since then, Class Counsel, the Claims Administrator, and Amazon.com have worked diligently to timely disseminate Notice to the Settlement Class as outlined in the Settlement Agreement and Second Amended Preliminary Approval Order. As of April 16, 2025, 82,289 persons have submitted a claim form, and the deadline to submit a claim is not until May 12, 2025. Ibey Decl., ¶ 17; Declaration of Christopher Leung ("Leung Decl."), ¶ 4.

III. REQUESTED ATTORNEYS' FEES, LITIGATION COSTS, CLASS NOTICE AND ADMINISTRATION EXPENSES AND SERVICE AWARD TOTALLING $1,350,000 SHOULD BE APPROVED AS FAIR AND REASONABLE

Plaintiff's request for $1,350,000 in Claims Administration Costs, attorneys' fees, litigation costs, and an Individual Service Award, combined, is fair and reasonable and supported by the work and expenses incurred, with a reasonable risk multiplier on the fees request. This request is to be paid by Defendants separate and apart from the award to the Settlement Class Members.

A. Public Policy Favors Awarding Attorneys' Fees and Costs to Attorneys Acting as Private Attorneys General

Courts have long recognized the need for class actions in consumer cases where recoveries are too small to warrant individual prosecution. See Earley v. Superior Court, 79 Cal. App. 4th 1420, 1434 (2000) (citations omitted); see also Linder v. Thrifty Oil Co., 23 Cal. 4th 429, 434 (2000) ("Courts long have acknowledged the importance of class actions as a means to

prevent a failure of justice in our judicial system."). Appropriate awards of attorneys' fees are necessary to ensure consumer rights are protected and defended, and a plaintiff who obtains a settlement on behalf of absent class members may recover reasonable attorneys' fees and costs incurred in litigation. See, e.g., Mills v. Electric Auto-Lite Co., 396 U.S. 375, 391-92 (1970) (recognizing right of class action plaintiffs who have obtained a settlement for a class to recover attorneys' fees and costs).

Individual members of the Class likely could not or would not have undertaken the substantial investigation and litigation necessary to prosecute individual claims related to Olaplex's alleged "Made in U.S.A." misrepresentations. Consequently, a class action was necessary to vindicate Class Members' rights and would "serve [an] important role in the enforcement of consumers' rights." See In re Tobacco II Cases, 46 Cal. 4th 298, 313 (2009). Plaintiff's claims, including those made pursuant to the CLRA, provide for the recovery of actual damages. Cal. Civ. Code § 1780. The Products that Plaintiff purchased cost only $25.50 and $28.00, respectively, excluding tax. Compl. ¶¶ 50-51. As such, recovery on an individual basis, notwithstanding the Settlement, would likely not convince even the most litigious individual to pursue litigation on an individual basis. See e.g., Barrett v. Wesley Fin. Grp., LLC, No. 13cv554-LAB (KSC), 2015 U.S. Dist. LEXIS 189410, at *19-20 (S.D. Cal. Mar. 30, 2015) (finding that $500 was insufficient to motivate consumers to bring individual claims in consumer case).

Contingency fee litigation is risky, including class action cases such as this one based on alleged misrepresentation where the challenged country of origin statement appears in small print on the back of the label for the Products. Compl., ¶¶ 32-33. Also, prior cases and studies are instructive on the risks associated with misrepresentation claims concerning country of origin, in particular due to the price premium analysis where experts have opined, or studies have shown, that allegedly false Made in USA representations on consumer products tend to result in a price premium of only between 1 and 6 percent of the retail price. See ROA # 21, p. 20. Despite these risks, Plaintiff and Class Counsel have secured meaningful relief for the Class in the form of a $5.00 Voucher to all Settlement Class Members who submit a valid and timely Claim, without the need to show proof of purchase. Agr. §§1.35, 3.5(a).

Defendants have already begun removing "Made in U.S.A." language from some of their Products that may contain foreign ingredients, meaning that Plaintiff's efforts have likely influenced beneficial changes to Defendants' marketing practices. Without a Settlement, Defendants would likely look to the requirement under Cal. Bus. & Prof. Code § 17533.7(b) that the product's final wholesale value can be made with up to 5% foreign ingredients before it may not include Made in USA language in California, as a potential defense. Contrarily, Plaintiff may look to the stricter federal standard under 16 C.F.R. § 323 relating to county of origin representations.

In all, public policy favors approval of the requested award of attorneys' fees and costs through the reasonable class settlement as opposed to protracted and contested litigation.

B. Legal Standard for Award of Attorneys' Fees and Costs

Attorneys' fees may be recovered in this matter pursuant to the private attorney general doctrine, which is codified in Cal. Civ. Proc. Code § 1021.5. See Slayton v. Pomona Unified School Dist., 161 Cal. App. 3d 538, 541 n.1 (1984); see also In re Portfolio Recovery Assocs., LLC, No. 11-md-2295-JAH (BGS), 2014 U.S. Dist. LEXIS 8218, at *19 (S.D. Cal. Jan. 8, 2014) (refusing to dismiss a prayer for attorneys' fees under Cal. Civ. Proc. Code § 1021.5 in TCPA matter and noting that award of attorneys' fees in other cases involving federal law have been approved under § 1021.5). This doctrine is often invoked in actions involving the UCL, such as this instant case. See, e.g., Walker v. Life Ins. Co., No. CV 10-9198 JVS (JDEx), 2021 U.S. Dist. LEXIS 252938 (C.D. Cal. June 7, 2021) (awarding attorneys' fees pursuant to § 1021.5 in class action settlement involving UCL). Attorneys' fees and costs are also awardable under Cal. Civ. Code §§ 1782(a).

The Settlement provides reasonable monetary relief to the Class. Each person who submits a timely and completed Claim Form is entitled to a $5.00 Voucher towards the purchase of an Olaplex product. Agr. § 1.35, 3.5(a). And there is no limit on the number of persons who may submit a claim, subject only to the provision of one claim per person. Id. at § 2.1. Indeed, the Voucher is as good as using cash on Defendants' website and its use is not contingent upon any condition other than the submission of a valid and timely Claim Form (e.g., a customer need

not make a purchase of a certain sum before being able to apply the Voucher on Defendants' website).

The Complaint alleges that Plaintiff purchased Olaplex Products believing them to be made in the United States of America given the existence of the "Made in U.S.A." representation on the Products' labeling. Compl. ¶¶ 32-34. Were Plaintiff to prevail in this suit, she would arguably be entitled to damages based on the difference between the amount actually paid for the Products and the amount she should have paid for the Products in the market absent the alleged "Made in U.S.A" misrepresentation. See Pulaski & Middleman, LLC v. Google, Inc., 802 F.3d 979, 989 (9th Cir. 2015). The burden imposed on Plaintiff to prove her claims is not proportional to her minimal recovery.

C. Requested Attorneys' Fees and Costs are Supported by the Lodestar Approach Based on a Reasonable Risk Multiplier of Approximately 3.45

Plaintiff's lodestar of $350,944 (which includes a reasonable estimate of additional hours through the Final Approval Hearing and completion of the case), and expenses incurred as of April 15, 2025, support the requested attorneys' fees and costs are fair and reasonable. Ibey Decl., ¶¶ 18-28; Kazerounian Decl. ¶¶ 11-30; Declaration of Gil Melili ("Melili Decl."), ¶¶ 7-19.

1. Expenses of $36,293.61 so far were reasonable incurred

Class Counsel are requesting reimbursement of current expenses of $36,293.61, as well as costs that may be reasonably incurred through completion of the Settlement. Ibey Decl., ¶¶ 24-25, Exhibit 2 thereto (costs summary). These costs include, for example, combined mediation fees ($10,375.00), payment to Amazon to locate class member data and provide their own class notice to Amazon customers in response to Plaintiff's subpoena ($20,000.00), expert consultation services ($2,000.00), and various other expenses (e.g., OneLegal filing fees, charges for legal research on LexisNexis, postage, printing, and travel). Ibey Decl., ¶ 25, Exhibit 2 thereto. Such expenses are relevant and necessary for this litigation. See, e.g., In re Immune Response Sec. Litig., 497 F. Supp. 2d 1166, 1177-78 (S.D. Cal. 2007) (finding that costs such as filing fees, photocopy costs, travel expenses, postage, telephone and fax costs, computerized legal research fees, and mediation expenses are relevant and necessary expenses in class action litigation).

While Class Counsel expect to incur additional costs through at least the July 11, 2025, final approval hearing, Class Counsel will not seek more than $1,052,199 in combined attorneys' fees and costs.

2. The requested attorneys' fees should be approved

California courts, in exercising broad discretion to determine the appropriate fee may base their calculations on the "lodestar" and "multiplier" method. See Press v. Lucky Stores, Inc., 34 Cal. 3d 311, 322 (1983); Serrano v. Priest, 20 Cal. 3d 25, 48-49 (1977) ("Serrano III"). Pursuant to the lodestar method, the court computes the "lodestar" amount by multiplying the number of hours reasonably expended by each attorney or legal staff member by their reasonable hourly rates. See Serrano III, 20 Cal. 3d at 48; Lealao v. Beneficial Cal., Inc., 82 Cal. App. 4th 19, 26 (2000). However, "the lodestar formula does not limit consideration to hours expended and hourly rate, though that is the foundation of the calculation." Id. at 40. The court then enhances the lodestar figure by a "multiplier" to account for a range of factors, such as the novelty of the case, its contingent nature, skill displayed by class counsel, and the degree of success achieved. Serrano III, 20 Cal. 3d at 49; see also Lealao, 82 Cal. App. 4th at 26; Thayer v. Wells Fargo Bank, 92 Cal. App. 4th 819, 834 (2001) ("[t]here is no hard-and-fast rule limiting the factors that may justify an exercise of judicial discretion to increase or decrease a lodestar calculation").

Dated: April 21, 2025

Respectfully submitted,
KAZEROUNI LAW GROUP, APC

By: _____
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